

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

DAVID SIU-KUNG MA,

Petitioner

VS.

JENNIFER RAMIREZ,

Respondent

) Case Number: FMS-25-387578

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),  
SPOUSAL OR PARTNER SUPPORT, AND SANCTIONS UNDER FAMILY CODE SECTION 271;  
REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),  
SPOUSAL OR PARTNER SUPPORT, AND SANCTIONS UNDER FAMILY CODE SECTION 271

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner David Siu-Kung Ma (Father) and Respondent Jennifer Ramirez (Mother). They share two minor children: Kira Doris Shuvalov (DOB: 08/10/17) and Rafael Eduard Shuvalov (DOB: 11/30/19).
- 2) On January 7, 2026, Father filed a Request for Order seeking:
  - a. An increase in parenting time to Wednesday at 6:00 p.m. – Sunday at 8:00 a.m. for Father and Sunday at 8:00 a.m. – Wednesday at 6:00 p.m. for Mother.
  - b. Modification of guideline support.
  - c. The parties to alternate claiming the children as dependents on a year-to-year basis.
  - d. Communication between the parties to be respectful and limited to child related issues only.

- e. Proof of actual payment of childcare costs to family members.
  - f. Travel orders.
  - g. Sanctions under Family Code section 271.
- 3) On January 28, 2026, Mother filed a Responsive Declaration wherein she asks the Court to deny any and all relief requested by Father, asserting that Father has not met his burden to show a change of circumstance.
  - 4) On January 30, 2026, Father filed a Reply Declaration, which has been read and considered by the Court.
  - 5) On April 15, 2026, Mother filed Respondent's Supplemental Declaration Regarding Custody and Visitation, which has been read and considered by the Court.
  - 6) On April 16, 2026, Father filed Petitioner's Supplemental Declaration, which has been read and considered by the Court.

#### **B. Findings and Order**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court finds good cause to rule on Father's Request for Order filed January 7, 2026 as follows:
  - a. An increase in parenting time to Wednesday at 6:00 p.m. – Sunday at 8:00 a.m. for Father and Sunday at 8:00 a.m. – Wednesday at 6:00 p.m. for Mother is DENIED. The parenting plan in place shall be followed for a period of six months before this Court will consider any additional increase.
  - b. Modification of guideline support is DENIED. There is no change of circumstance to warrant this request.
  - c. The parties to alternate claiming the children as dependents on a year-to-year basis is DENIED. Mother has a higher timeshare than Father therefore she is entitled to claim the child each year.

- 1 d. Communication between the parties shall be respectful and limited to child related issues  
2 only. Both parents shall communicate in a respectful manner and should limit their  
3 communications to child related issues only.
- 4 e. Proof of actual payment of childcare costs to family members is GRANTED. Pursuant to  
5 Family Code section 4062(a), childcare costs are limited to those “actually incurred,” and  
6 both parents must provide proof to the other parent of costs actually incurred.
- 7 f. Travel orders are DENIED. Neither party shall travel out of the State of California,  
8 without the express permission of the other parent.
- 9 g. Sanctions under Family Code section 271 are DENIED.
- 10 3) All prior orders not in conflict with the orders made herein shall remain in full force and effect.
- 11 4) Counsel for Father shall prepare the Findings and Order After Hearing.
- 12 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
17 10 days may allow the other party to prepare a proposed order and submit it to the court in  
18 accordance with CA Rules of Court, Rule 5.125(d).
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